

Complaint Report (CCRB)

CCRB Case No :	201607176	C/V Report Date :	Sun, 08/14/2016
Complaint Type :	CCRB	Investigator :	Jeffrey Mulinelli (S)
Complaint Made At :	IAB	Ref. No	16-29105
Received Date (CCRB) :	Mon, 08/22/2016 12:20 PM	Mode :	Phone
Incident Date(s) :	Sun, 08/14/2016 12:10 AM		
Place of Occurrence:	[REDACTED]	Precinct:	42
Location :	Street/highway	Boro:	Bronx
Reason for Initial Contact :	PD suspected C/V of violation/crime - street		
Charges:	Summons - other violation/crime		

Complainant/Victim Details

Name:	[REDACTED]	Type:	Comp/Victim
Address:	[REDACTED]		
Contacts:	[REDACTED]	[REDACTED]	
	[REDACTED]	[REDACTED]	
	[REDACTED]		
Gender:	[REDACTED]	Ethnicity:	[REDACTED]
Person Assisting:		Date of Birth:	[REDACTED]

Officer(s) Named in Complaint

Rank	Officer	S/W Officer	Tax No	Race	Cmd	Allegations/Board Dispositions
POM	Felix Baez	Subject Officer	[REDACTED]	Hispanic	807	Handcuffs too tight - (F) Unsubstantiated
POM	Felix Baez	Subject Officer	[REDACTED]	Hispanic	807	Property damaged - (A) Unsubstantiated
POM	Felix Baez	Subject Officer	[REDACTED]	Hispanic	807	Refusal to provide name/shield number - (A) Unsubstantiated
POM	Felix Baez	Subject Officer	[REDACTED]	Hispanic	807	Word - (D) Unsubstantiated
POM	Felix Baez	Subject Officer	[REDACTED]	Hispanic	807	Word - (D) Unsubstantiated
POM	Felix Baez	Subject Officer	[REDACTED]	Hispanic	807	Stop - (A) Substantiated (Command Discipline A)
SGT	Eric Berrios	Subject Officer	[REDACTED]	Hispanic	807	Threat of arrest - (A) Unsubstantiated
SGT	Miguel Frias	Subject Officer	[REDACTED]	Hispanic	807	Refusal to provide name/shield number - (A) Unsubstantiated
SGT	Miguel Frias	Subject Officer	[REDACTED]	Hispanic	807	Search (of person) - (A) Unsubstantiated
SGT	Miguel Frias	Subject Officer	[REDACTED]	Hispanic	807	Stop - (A) Substantiated (Command Discipline A)

SGT	Miguel Frias	Subject Officer	[REDACTED]	Hispanic	807	Interference with recording - (A) Unsubstantiated
SGT	Miguel Frias	Subject Officer	[REDACTED]	Hispanic	807	Search of recording device - (A) Unsubstantiated
SGT	Miguel Frias	Subject Officer	[REDACTED]	Hispanic	807	Electronic device information deletion - (A) Unsubstantiated

Initial Complaint Narrative

08/16/16***THE ORIGINAL LOG# 16-28836 WAS ASSESSED AS AN OG-CHIEF OF DEPARTMENT. On 08/14/16 0100 hours, ext 2244. 911 operator# 2534 transferred complainant [REDACTED] to the Command Center to state the following: Complainant stated he was on the corner of St. Pauls Street and Washington Ave when two plain clothes officers in an unmarked vehicle stopped and searched him, He felt the search was improper because he did nothing wrong and the officer searched him inappropriately by running his hands too close to his genitals. After the search the Officers transported him back to PSA7. At PSA7 he stated he waited 30 minutes before being released with summons number § 87(2)(b) [REDACTED] (§ 87(2)(b) [REDACTED]) issued by PO Baez tax# [REDACTED]. While leaving the precinct he asked the officers that transported him to the precinct their shield number which they refused to give. He states an officer stated "Make it easy on yourself or you're going thru the fucking system" When leaving the precinct [REDACTED] asked another officer for his information which he identified himself as Sgt. Berrios shield number 337. [REDACTED] states he was told not to come back into the precinct by Sgt. Berrios and also identified the officers as Reyes and Baez 0140 hours I conducted a ICIS check which yielded no prior logs.0155 hours I conducted a MOS search for PO Baez yielding positive results for PO Baez, tax# [REDACTED] PSA7 and SGT Berrios, tax# [REDACTED] 0200 hours I conducted a ARCS check which yielded un-finalized roll call showing Sgt. Berrios working assigned as Desk Officer. And no Officer by the name of Reyes located on the roll call. I attached ARCS to the log. 0230 hours I uploaded CC audio into the log. ICIS personnel query revealed Sgt Reyes Tax# 939296 and PO Reyes Tax# 957999.

Witness
